



CONDONATION RULING

Commissioner: **JS Du Plessis**
Case No: **WECT23564-25**
Date of Award: **18 December 2025**

In the ARBITRATION between:

WILBUR MATTHEE

(Union / Applicant)

AFROCENTRIC DISTRIBUTION SERVICES (PTY) LTD

(Respondent)

Union/Applicant's representative: **ON THE PAPERS**

Respondent's representative: **ON THE PAPERS**

PARTICULARS OF PROCEEDINGS AND REPRESENTATION

1. An In Limine process for Condonation was scheduled to be considered on the papers on 11 December 2025. The dispute relates to an unfair labour practice in terms of section 186 (2) (a) of the Labour Relations Act 66 of 1995 as amended, the (“**LRA**”). In here it states as follows:

‘Unfair Labour Practice’ means any unfair act or omission that arises between an employer and an employee –

(a) **Involving conduct by the employer relating to probation (excluding disputes about dismissals for a reason relating to probation) or training of an employee or relating to the provision of benefits to an employee’.**

2. Disputes relating to unfair conduct as envisaged by section 186 (2) (a) must be filed with the Commission within 90 days from the date of the employee becoming aware of the unfair conduct. Failing which, an application for condonation is required.
3. If the referral was filed outside of the prescribed time limit, the Applicant must in compliance with Rule 31 (1) (a) of the Rules for the Conduct of Proceedings before the CCMA, file a a application for condonation for the late filing of the LRA7.11 referral dispute form. Section 191 ((2) provides that-

‘if the employee shows good cause at any time, the council or the Commission may permit the employee to refer the dispute after the relevant time limit in subsection (1) has expired’.

4. The employee party, Wilbur Matthee (“**Matthee**”), hereinafter referred to as the (“**Applicant**”); a duly defined employee in accordance with section 213 of the LRA. The employer party is Afrocentric Distribution Services (Pty) Ltd; the (“**Respondent**”); and an employer as defined by section 213 of the LRA.
5. The Respondent was served a Rule 31 (3) notice of the Rules for the Conduct of Proceedings before the CCMA, to file a notice of intention to oppose the application within five (5) days upon the delivery of the application. The notice of opposition was filed and I have thus to consider the application of the papers.

THE ISSUE TO BE DECIDED

6. I must decide whether or not to grant condonation for the late filing of the Applicant's dispute for an alleged unfair dismissal dispute.

THE BACKGROUND TO THE DISPUTE

7. The Applicant alleged to becoming aware of the unfair conduct on 11 November 2025 and the referral was filed with the CCMA on 5 December 2025. This is not outside of the prescribed 90 days for disputes of this nature and therefore does not require condonation.

ANALYSIS OF THE EVIDENCE AND ARGUMENT

8. On treading the application for condonation of the alleged unfair labour practice dispute, it appears that the Applicant became aware of the act or omission on 11 November 2025 and filed the dispute with the CCMA on 5 December 2025. The referral is not late and do not require an application for condonation.
9. Having concluded as such, I found it unnecessary to consider the relevant aspects of the condonation application as well as the opposing affidavit from the Respondent.
10. The CCMA must schedule the matter for hearing as soon as possible.
11. I shall make the following ruling.

RULING

12. Condonation is not required and consequently, the CCMA must schedule the matter for hearing as soon as possible.
13. There is no further order as to costs.



JACOBUS S DU PLESSIS

CCMA COMMISSIONER